

Graded Assignment 9 - COMP 3057

1.) Are end-user license agreements (EULA) intrinsically unfair to the user?

People often say that End-User License Agreements (EULAs) are unfair because they are rarely negotiated and are usually presented as "take-it-or-leave-it" contracts. Users often have to agree to the terms before installing or using software, even though the terms may use complicated legal language that most people don't read or fully understand. Studies show that EULAs often include terms that make it hard to copy, move, or modify software. They might even make it hard to sell or reverse engineer the software.

PCMag says that many EULAs are written more to protect businesses from lawsuits than to make a fair contract with users. This situation means that businesses can set very strict rules, and users have little power to argue or change them. This makes EULAs unfair because the agreement isn't made on equal terms. Most people just click "I Agree" to get to the software, even if they don't really agree with all the terms.

But EULAs aren't completely crazy. They help software companies protect their intellectual property, stop piracy, and set rules for how their software can be used. Companies could face problems with people using their products in ways they shouldn't or not knowing the law, without such agreements.

In general, I don't think EULAs are inherently unfair, but they often become unfair in practice because they are hard to understand, unclear, and users don't have a real choice about whether to accept them.

2.) Ethical evaluation of the six arguments from the Cracked article

1. Companies can use your uploaded photos commercially

From a rule-utilitarian perspective, this practice is morally wrong because it could help companies profit but harm many users by exploiting their personal content without paying them. A rule that lets companies use users' content without permission could make people less likely to trust digital platforms.

2. You don't truly own digital products you purchase

Rule utilitarianism would question this because it goes against what people expect from a product. Most people think that when they buy something, they own it. If companies can take away access, it could make many people unhappy and harm society as a whole.

3. Companies can disable or "brick" devices

This is an ethical issue because it could hurt customers who bought the hardware. A rule that allows businesses to turn off devices could take away some consumers' freedom and have negative effects on users.

4. Services may track and collect user data

Tracking users without their knowledge or permission could be a breach of their privacy. From a utilitarian perspective, the harm caused by invading someone's privacy could outweigh the benefits of gathering data.

5. Companies may retain rights to removed content

Allowing companies to retain the rights to deleted user content can jeopardize privacy for an extended period. These rules take away some of the user's control over their information and could be dangerous if used incorrectly.

6. Users give up the right to sue

Mandatory arbitration clauses make it harder for people to get justice. Rule utilitarianism holds that a rule that prevents people from getting legal help could give businesses an unfair advantage and make society as a whole less fair.

3.) Windows refund question (Linux vs Windows)

If you already have Windows 10 or Windows 11 on your computer, it can be hard to get a refund for the operating system. Microsoft's license states that if a user doesn't agree to the terms, they should contact the device's store or the manufacturer to learn the return policy. They might have to send back the whole device to get their money back.

If Windows was already on your PC when you bought it, and you want to switch to Linux or another operating system, you usually can't just get a refund for Windows. Instead, you would have to follow the manufacturer's return policy. This could mean sending the whole computer back or not getting a refund at all.

The Windows EULA also says that if the software doesn't work as promised, the maker or Microsoft can fix it, replace it, or give you your money back.

So, even though a refund is possible in theory, in practice it usually depends on the hardware maker's return policy, not Microsoft's. This situation makes it hard for people who want to switch operating systems after they buy it.

References

Jumping Through EULA Hoops. (2025). PCMag; PCMag.

<https://www.pcmag.com/archive/jumping-through-eula-hoops-222618>

Create Your Custom EULA. (2026). LawDepot.

<https://www.lawdepot.ca/business/software-license-agreement/>

Germ, E. (2012, February 15). *6 Terrifying User Agreements You've Probably Accepted*.

Cracked.com.

https://www.cracked.com/article_19683_6-terrifying-user-agreements-youve-probably-accepted.html

Terms | Linux Foundation. (2026). Linuxfoundation.org.

<https://www.linuxfoundation.org/legal/terms>

The GNU General Public License v3.0 - GNU Project - Free Software Foundation. (2023).

Gnu.org. <https://www.gnu.org/licenses/gpl-3.0.en.html>

Microsoft Terms of Use | Microsoft Legal. (2022). Microsoft Legal.

<https://www.microsoft.com/en-us/legal/terms-of-use>